



File No.: EXP202307827

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 14, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against PRENSA IBÉRICA MEDIA S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No.: EXP202307827 (PS/00493/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

FACTS

FIRST: On 07/06/23, a complaint was received by this Spanish Agency for Data Protection, originating from the Data Protection Authority of Austria, filed by the association NOYB on behalf of Ms. A.A.A. The complaint was directed against the entity PRENSA IBÉRICA MEDIA, S.L., with CIF B66603267, responsible for the website, <https://www.sport.es/es/> (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI). The complaint indicates that the method of obtaining consent for the installation of data storage and retrieval devices (cookies), through the banner used on the website <https://www.sport.es/es/>, would not comply with current regulations.

SECOND: On 03/07/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on the matters raised in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as certified by the Electronic Notifications and Electronic Address Service, was sent to the respondent on 21/07/23 via the electronic notification service, "NOTIFIC@", being accepted by the respondent on 21/07/23.

THIRD: On 04/08/23, a response was received from the respondent in which the following is stated:

I. That on July 21, 2023, the Company received the letter from the Spanish Agency for Data Protection, regarding file No.: EXP202307827, in which a transfer of the complaint and a request for information regarding the complaint filed by NOYB (hereinafter the "Claimant") to the Company is requested.

II. That, in compliance with the aforementioned procedure, through this letter and within the granted deadline, I hereby respond to the request as follows,

1.- Sole

1.1. The Company is not the appropriate recipient of the complaint referred to file No.: EXP202307827 that has been notified to it.

1.2. The website <https://www.milanuncios.com/> is not owned by the Company.

1.3. The processing alleged by the Claimant is carried out by another entity, unrelated and without any connection to the Company. The Company does not recognize any link with the owner of the website that the Claimant alleges as infringing.

FOURTH: On 31/10/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On 14/12/23, the Inspection Sub-Directorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the website <https://www.sport.es/es/>, obtaining the following characteristics:

a).- Regarding the cookies used before the user gives consent:

Upon entering the website <https://www.sport.es/es/> for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, and after forcing the browser to download the latest version of the webpage hosted on the remote server, it is observed that it uses the following cookies:

.- Technical nature cookies:

Cookies

Domain

Description

__cf_bm

.piano.io

This cookie is used to distinguish between humans and bots.

.- Performance cookies: Those that allow quantifying the number of visits and sources of traffic to evaluate the performance of the site and improve it. They help to

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to know which pages are the most or least visited and how visitors navigate through the website.

Cookies

Domain

Description

_chartbeat2

.deporte.es

Located on a site that uses the real-time analytics platform Chartbeat. It is used to distinguish between new and returning visitors.

.- Cookies detected from Google Analytics:

cookies

Domain

Description

_ga_MEZPLJLX5B

.deporte.es

Google Analytics uses this cookie to maintain the session state.

AMP_TOKEN

.deporte.es

Associated with Google Universal Analytics. Contains a token that can be used to retrieve a client ID from the AMP service.

_gat_UA-76538257-1

.deporte.es

This is a pattern type cookie set by Google Analytics, where the pattern element in the name contains the unique identity number of the account or website it relates to. It is a variation of the _gat cookie that is used to limit the amount of data recorded by Google on high-traffic websites.

_ga

.deporte.es

Associated with Google Universal Analytics. It is used to distinguish unique users by assigning a randomly generated number as a client identifier. It is included in every page request of a site and is used to calculate visitor, session, and campaign data for the site's analytical reports.

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cookies

Domain

Description

_gid

.deporte.es

This cookie is set by Google Analytics. It stores and updates a unique value for each visited page. It is used to count and track the pages viewed.

.- Targeting or advertising cookies: These are cookies specifically designed to gather information about

the pages viewed to send advertisements based on topics relevant to the user's interests:

cookies

Domain

Description

gckp

.cxense.com

Records a unique identifier that identifies a returning user's device. The ID is used for targeted advertising.

.- Functionality cookies: These allow the website to remember choices you make (such as your username, language, or the area you are in) and provide enhanced, more personalized features.

cookies

Domain

Description

_cb_svref

.deporte.es

This is a first-party cookie from Microsoft MSN that is used to measure website usage for internal analysis.

LANGUAGE

.piano.io

There are many different types of cookies associated with this name; however, in most cases, it will be used to store language preferences and potentially to offer content in the stored language.

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.- Cookies detected but whose purpose could not be identified:

cookies

Domain

LANG_CHANGED

.piano.io

_cb

.deporte.es

__pid

.deporte.es

visor_token

.csync.loopme.me

pnespsdk_ssn

www.deporte.es

csuuid

.primis.tech

didomi-sport1

.deporte.es

__pat

.deporte.es

_pcus

.deporte.es

_pbjs_userid_consent_data

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cookies

Domain

KCCHMás

.ads.pubmatic.com

cX_G

.deporte.es

TVID

.tremorhub.com

__pviMás

.deporte.es

cX_P

.deporte.es

pnespsdk_visitor

www.deporte.es

_pcid

.deporte.es

__por

.deporte.es

_pctx

.deporte.es

xbcMás

.deporte.es

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cookies

Domain

_MAT_RNG_

www.deporte.es

_MAT_TK_

www.deporte.es

_t_tests

.deporte.es

__bs_id

www.deporte.es

b).- About the existing cookie information banner on the first layer (main page):

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without taking any action on the website, a cookie information banner appears with the following message:

We respect your privacy!

The publishing company and its controlling company Prensa Ibérica Media, S.L., as well as other companies we work with, store and access non-sensitive information from your device, such as cookies and other identifiers, to personalize advertising and content based on your browsing habits and interest profiles, which may additionally be shared with third parties. Some of the companies we work with process information derived from cookies and other identifiers solely for statistical purposes. You can change your preferences or refuse their use by clicking on "more information" or at any time on the link below "privacy preferences." You will find more detailed information in our Cookie Policy.

<>

<>

<>

If you choose to accept all cookies by clicking on the <> option, it is verified that the website continues to use the cookies detected at the beginning of the visit, before granting consent.

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If the option <> is clicked, the website displays a control panel where it is observed that only the group of cookies labeled "User Preference Storage" is pre-checked as "Mandatory" (accepted). The other groups of cookies are not pre-checked in either of the two options (OFF-ON).

If one wishes to reject all cookies by clicking on the <> option, it is verified that the website continues to use the cookies detected at the beginning of the browsing session.

It is confirmed that if the user wishes to manage the groups of cookies by selecting the groups they wish to reject or accept, there is no subsequent option to "accept preferences" as there are only two options in this control panel, which are "accept all cookies" or "reject all cookies".

c).- Regarding the information provided in the second layer (Cookie Policy):

If the "Cookie Policy" is accessed through the link available in the cookie information banner <> or through the link available at the bottom of the main page, the website redirects the user to a new page <https://www.prensaiberica.es/politica-de-privacidad-resumida/> where information is provided about what cookies are, the purpose of the information collected through cookies, and what types of cookies exist.

d).- Regarding the possibility of modifying consent once given in relation to cookies.

If the user has given initial consent for the website to use non-technical or non-essential cookies and wishes to modify that consent at a certain moment, there is the possibility to access the cookie control panel through the <> link available at the bottom of the website.

If this option is clicked, a new cookie control panel appears, where the groups of cookies are now pre-checked in the "OFF" option (deactivated).

If one wishes to reject all cookies that are being used that are not technical or necessary by clicking on the <> option without having accepted any group of cookies, it is observed that the website continues to use the same cookies detected at the beginning of the session.

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

a).- Regarding the installation of cookies on the terminal equipment prior to the user's consent: Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing. This information must be provided in accordance with the provisions of the GDPR. Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the cookies exempted would be user input cookies (those used to fill out forms or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. On the contrary, it will be necessary to inform and obtain the user's prior consent before using any other type of cookies, whether first-party or third-party, session or persistent.

Regarding cookies used for the purpose of obtaining traffic or performance statistics, they may be exempt from consent under certain conditions. To limit themselves to what is strictly necessary for the provision of the service and, therefore, be exempt from consent in accordance with Article 22.2 of the LSSI, these

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Cookies, or similar technologies, must have a strictly limited purpose of exclusively measuring the audience of the site or application. This processing must be carried out on behalf of the publisher and used to produce anonymous statistical data only.

Conversely, to be exempt from consent, these cookies or similar technologies must not result in data being matched with other processing operations or in data being transmitted to third parties.

Additionally, they must not allow the aggregated tracking of the navigation of the person using different applications or browsing different websites.

Therefore, any solution that uses the same identifier across multiple sites (for example, through cookies placed on a third-party domain loaded by several sites) to cross-reference, duplicate, or measure a unified reach rate of content is excluded.

Some analytics and audience measurement services, implemented by the publisher or by providers, do not fall within the scope of the exemption. This occurs, in particular, when they state that they reuse the data for other purposes, as is the case with several audience measurement offerings available in the market.

For this reason, and in general, the AEPD considers that for the proper management of a website, only the following measurements are strictly necessary:

- Audience measurement, page by page;
- The list of pages from which a link has been followed to request the current page (sometimes called "referrer"), whether internal or external to the site, by page and aggregated daily;
- Determination of the type of device, browser, and screen size of visitors, by page and aggregated daily;
- Statistics on page load time, by page and aggregated hourly;
- Statistics on the time spent on each page, bounce rate, scroll depth, by page and aggregated daily;

- Statistics on user actions (clicks, selections), by page and aggregated daily;
- Statistics on the geographical area of origin of requests, by page and aggregated daily.

Therefore, any other processing of data beyond these listings by both the publisher and the provider must have the consent of the data subject to be considered lawful.

Regarding Google Analytics Cookies, it is noteworthy that in the "Terms of Service of Google Analytics," which are established between Google Ireland Limited and the entity that formalizes the Contract for the use of analytical cookies, it is stated in the "Privacy" section that the contractor "must disclose the use of Google Analytics and how this Service collects and processes data.

This can be done by prominently displaying a link to the page "How Google uses information from sites or apps that use our services," which can be found at www.google.com/policies/privacy/partners or at any other URL that Google may provide at the time.

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"7. Privacy

You must not send hashed or otherwise encrypted information to Google that Google may consider personally identifiable information or use it as such, nor should you allow a third party to do so or assist them in doing so, except as permitted by the policies or terms of the Google Analytics features made available to you and in accordance with them, and only if the information sent to Google in connection with that Google Analytics feature has been hashed according to industry standards. You must have an appropriate Privacy Policy and comply with it. You must also comply with all applicable laws, policies, and regulations related to the collection of information from Users. You must also publish a Privacy Policy that notifies of the use of cookies, mobile device identifiers (for example, the Advertising Identifier for Android or the Advertising Identifier for iOS), or similar technology that you use to collect data. Additionally, you must disclose the use of Google Analytics and how this Service collects and processes data. You can do this by prominently displaying a link to the page "How Google Uses Information from Sites or Apps That Use Our Services," which can be found at www.google.com/policies/privacy/partners/ or any other URL that Google may provide from time to time. You must take commercially reasonable steps to ensure that Users receive complete and clear information about the storage of cookies and access to them or any other information on Users' devices, and that they provide their consent in this regard when such activity occurs in connection with the Service and when the law requires providing such information and obtaining such consent."

Through the aforementioned link, the following information is accessed:

Google's advertising services are testing new ways to publish and measure digital advertising that better protect users' online privacy through the Privacy Sandbox initiative in Chrome and Android. Users who have enabled the relevant Privacy Sandbox settings in Chrome or Android will be able to see relevant ads from Google's advertising services based on Topics or Protected Audience data stored in their browser or mobile device. Google's advertising services may also measure ad performance with attribution reporting data stored in their browser or mobile device. More information about Privacy Sandbox

HOW GOOGLE USES INFORMATION FROM WEBSITES OR APPS THAT USE OUR SERVICES

A large number of websites and applications use Google services to enhance their content and offer it for free. By integrating our services, these websites and applications share information with Google.

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For example, when you access a website that uses advertising services such as AdSense, which includes analytics tools like Google Analytics or embeds video content from YouTube, the web

browser automatically sends certain information to Google. The data we receive includes the URL of the page you accessed and its IP address, among others. We may also place cookies in your browser or read those already stored in it. Applications that use Google's advertising services also share information with us, such as the name of the application and a unique identifier for advertising. Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users from fraud and abuse, and personalize the content and ads that appear on Google or on the websites and applications of our partners. Please refer to the privacy policy for more information on how we handle data for each of these purposes and the advertising page for more information about Google ads, how your information is used in the context of advertising, and how long Google retains this information. Our Privacy Policy explains the legal grounds on which we rely at Google to process our users' information. For example, we may process it with your consent or to pursue legitimate interests such as providing, maintaining, and improving our services with the aim of meeting user needs. Sometimes, when we process information that a website or application has shared with us, that website or application first asks users if they consent to us processing their information. For example, a banner may be displayed on a website asking users if they consent to Google processing the data that the website collects. In such cases, we will respect the purposes described in the consent given to the corresponding website or application, rather than relying on the legal grounds stipulated in our Privacy Policy. If any user wishes to modify or withdraw their consent, they must do so from the relevant website or application. (...)

Therefore, Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users from fraud and abuse, and personalize the content and ads that appear on Google or on the websites and applications of our partners. Thus, these cookies are not exempt as the information is used for other purposes.

In this case, checks conducted on the websites confirmed that upon entering them for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on them, both first-party and third-party cookies that were not of a technical nature were used, such as the following:

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.- Performance cookies:

_chartbeat2
.deporte.es

.- Identified cookies from Google Analytics:

_ga_MEZPLJLX5B
AMP_TOKEN
_gat_UA-76538257-1
_ga
_gid

.- Targeting or advertising cookies:

gckp
.cxense.com

.- Functionality cookies:

_cb_svref
.deporte.es
IDIOMA
.piano.io

.- Cookies whose purpose could not be identified:

LANG_CHANGED

.piano.io

(third party)

_cb

.deporte.es

__pid

.deporte.es

visor_token

.csync.loopme.me

(third party)

pnespsdk_ssn

.deporte.es

.primis

.techdidomi-sport1

(third party)

__pat

.deporte.es

_pcus

.deporte.es

_pbjs_userid_consent_data

.deporte.es

KCCHMás

.ads.pubmatic.com

(third party)

cX_G

.deporte.es

TVID

.tremorhub.com

(third party)

__pviMás

.deporte.es

cX_P

.deporte.es

pnespsdk_visitor

.deporte.es

_pcid

.deporte.es

__por

.deporte.es

_pctx

.deporte.es

xbcMás

.deporte.es

_MAT_RNG_

.deporte.es

_MAT_TK_

.deporte.es

_t_tests

.deporte.es

__bs_id

.deporte.es

b).-

Regarding the cookie information banner present on the first layer (main page):

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The cookie banner on the first layer must include information regarding the identification of the responsible publisher of the website, in case their identifying data does not appear in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes for which the cookies will be used and whether they are first-party or also third-party cookies, without the need to identify them in this first layer.

Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created, and it must include information on how the user can accept, configure, and reject the use of cookies, with the warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must have a clearly visible link directing to a second informational layer about the use of cookies. This same link may be used to lead the user to the cookie settings panel, provided that access to the settings panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

In the case at hand, it is noted that the existing cookie information banner on the first layer of the relevant websites contains the message:

“The publishing company and its parent company Prensa Ibérica Media, S.L., as well as other companies we work with, store and access non-sensitive information from your device, such as cookies and other identifiers, to personalize advertising and content based on your browsing habits and interest profiles, which may additionally be shared with third parties. Some of the companies we work with process the information derived from cookies and other identifiers solely for statistical purposes. You can change your preferences or reject their use by clicking on 'more information' or at any time via the link below 'privacy preferences'. You will find more detailed information in our Cookie Policy.”

Identifies the purposes for which the cookies will be used and whether they are first-party or also third-party; informs about the type of data that will be collected and includes information on how the user can accept, configure, and reject the use of cookies.

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's consent explicitly. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating through the website will not be considered, for these purposes, a clear affirmative action under any circumstances.

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implying the provision of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which the acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented: one to accept all cookies and another to

reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes favoring the acceptance of cookies are not admissible under any circumstances.

If for the configuration of cookies, the website refers to the settings of the browser installed on the terminal device, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also provide, in any case, a mechanism that allows the rejection of the use of cookies and/or doing so in a granular manner.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must offer a mechanism that allows for easy withdrawal of consent at any time. It will be considered that this ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools provided by the browser and third parties, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it is NOT possible to reject all cookies that are not technical or necessary at once in the control panel, as if the "Reject All" option is clicked, it is verified that the website continues to use the same cookies detected at the beginning that are not technical or necessary.

It is also verified that if the user wishes to manage the groups of cookies by selecting the groups they wish to reject or accept, there is no subsequent option to "accept preferences" as there are only two options in this control panel, which are "accept all cookies" or "reject all cookies."

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d).- On the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the consent previously granted at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that this ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

In this case, if the user has given initial consent for the website to use cookies that are not technical or necessary and wishes, at a certain moment, to modify that consent, there is the possibility to access the cookie control panel through the <> link located at the bottom of the website.

If this option is clicked, a new cookie control panel appears, where the groups of cookies are now pre-checked in the "OFF" (disabled) option.

If the user wishes to reject all cookies that are being used that are not technical or necessary by clicking on the <> option without having accepted any group of cookies, it is observed that the website continues to use the same cookies detected at the beginning of the session.

III

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website <https://www.sport.es/es/>, namely, the use of cookies that are not technical or necessary without the user having granted their consent; the impossibility of rejecting them or managing them in a granular manner, and the impossibility of withdrawing consent once granted, could imply, on the part of the accused, the commission of the infringement of Article 22.2 of the LSSI, as it establishes the following:

"Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

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The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient.”

IV.

Proposal and Graduation of the Sanction

This infringement is classified as “minor” in Article 38.4 g) of the aforementioned Law, which considers as such: “Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.”, which may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the “graduation of the amount of sanctions”, taking into account the following criteria:

- a) The existence of intent.
- b) The period during which the infringement has been committed.
- c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed in accordance with the following aggravating criteria established by Article 40 of the LSSI:

- The existence of intent (paragraph a). This expression must be interpreted as equivalent to the degree of culpability according to the ruling of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the accused entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.

In accordance with these criteria, and without prejudice to what results from the instruction of this file, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by it, an initial sanction of €5,000 (five thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: INITIATE SANCTIONING PROCEDURE against the entity, PRENSA IBÉRICA MEDIA, S.L., with CIF B66603267, responsible for the website, <https://www.sport.es/es/>, for the violation of Article 22.2 of the LSSI as typified in Article 38.4.d) of the same regulation, regarding the "Cookie Policy" of said website.

SECOND: APPOINT: as Instructor Mr. B.B.B., and Secretary, if applicable, Mr. C.C.C., indicating that

either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction of this file, 5,000 euros (five thousand euros).

FIFTH: NOTIFY this agreement to initiate the sanctioning file to the entity PRENSA IBÉRICA MEDIA, S.L., granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of the amount of this, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 3,000 euros (Three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If it is decided to proceed with the voluntary payment of any of the amounts indicated above (4,000 euros or 3,000 euros), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On February 22, 2024, the respondent has proceeded to pay the sanction in the amount of

4,000 euros making use of one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

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THIRD: The payment made entails the waiver of any action or remedy in the administrative pathway against the sanction, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or remedy in the administrative pathway against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202307827, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to PRENSA IBÉRICA MEDIA S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for the Protection of Data

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